

Court No. - 11

Case :- BAIL No. - 9874 of 2019

Applicant :- Kranti Gupta

Opposite Party :- State Of U.P.

Counsel for Applicant :- Janardan Prasad,H.K. Rai,Km. Manju Singh

Counsel for Opposite Party :- G.A.

Hon'ble Rajeev Singh,J.

Learned A.G.A. prays for and is granted a week's time to file reply.

List on 05.11.2019.

Order Date :- 18.10.2019

Amit/-

Court No. - 27

Case :- BAIL No. - 9874 of 2019

Applicant :- Kranti Gupta

Opposite Party :- State of U.P.

Counsel for Applicant :- Janardan Prasad, H.K. Rai, Km. Manju Singh

Counsel for Opposite Party :- G.A.

Hon'ble Karunesh Singh Pawar, J.

Supplementary affidavit filed by learned counsel for the applicant is taken on record.

Learned A.G.A. prays for and is granted one week and no more time to file reply to the supplementary affidavit.

List on 13.11.2019.

Order Date :- 5.11.2019

R.C.

Court No. - 27

Case :- BAIL No. - 9874 of 2019

Applicant :- Kranti Gupta

Opposite Party :- State of U.P.

Counsel for Applicant :- Janardan Prasad,H.K. Rai,Km. Manju Singh

Counsel for Opposite Party :- G.A.

Hon'ble Karunesh Singh Pawar,J.

As prayed by learned A.G.A., list this case on 16.11.2019.

When the matter is next listed, name of Sri Anuj Dayal, Advocate be shown as counsel for the applicant.

Order Date :- 13.11.2019

Reena/-

Court No. - 27

Case :- BAIL No. - 9874 of 2019

Applicant :- Kranti Gupta

Opposite Party :- State of U.P.

Counsel for Applicant :- Janardan Prasad,H.K. Rai,Km. Manju Singh

Counsel for Opposite Party :- G.A.,Anuj Dayal

Hon'ble Karunesh Singh Pawar,J.

Counter and supplementary counter affidavits filed by learned A.G.A. are taken on record as well as rejoinder affidavit filed is also taken on record.

Heard learned counsel for the applicant, learned A.G.A. for the State and perused the record.

Learned counsel for applicant submits that an F.I.R. No. 216/2018, under Section 135(b) E.C. Act was lodged on 04.07.2018 at P.S. Sandila, District Hardoi alleging that on 03.07.2018 at 13:35 hours when the police station Sandila alleging that employees/officers of the Electricity Department came in jeeps & cars to the site of the applicant. He was not present and crushing of wheat was stopped. It was found that seal of the city chambers was tampered and other irregularities were found and as such the tempered seal was seized and recovery memo was prepared.

Learned counsel for applicant further submits that during inspection on 03.07.2019, no *ferd* of meter was prepared and it was not sent F.S.L. lab which is mandatory under point No.8.186 of the U.P. Electricity Supply Code, 2005. The applicant has deposited 50% of the amount demanded by the Electricity Department. The deposit slip is on record. He further submits that assessment order is engaging attention of the appellate court. Learned counsel for applicant further submits that on 17.03.2018, a breakdown complaint was made by applicant to the Electricity Department. Even then no such tempering was found. Thereafter, again on 23.06.2018, meter reading statement was given to applicant which was few days back the alleged incident then also no such irregularity of tempering was found. Learned counsel for the applicant has invited attention of the Court towards provision of Section 8.1(b)(II) of U.P. Electric Supply Code, 2005 which shows that no offence or theft is made if safety seals are broken. Learned counsel for applicant further submits that applicant has no criminal history and he is in jail since 10.10.2019. The

maximum punishment under Section 135(b) E.C Act is 3 years or fine or both.

It is lastly submitted that there is no possibility of the applicant of fleeing away from judicial custody or tampering with the witnesses. In case the applicant is enlarged on bail, he shall not misuse the liberty of bail.

Learned A.G.A. opposed the prayer for bail but could not dispute the aforesaid facts as argued by the learned counsel for the applicant.

Considering the facts and circumstances of the case, and also considering the nature of allegations, arguments advanced by learned counsel for the parties and without expressing any opinion on merits of the case, I find it to be a fit case for enlarging the applicant on bail.

Let the applicant, **Kranti Gupta** involved in Crime No. 216/2018 arising out of Case No.145/2019, under Section 135(b) E.C. Act, Police Station - Sandila, District - Hardoi be released on bail on his furnishing a personal bond and two sureties each in the like amount to the satisfaction of the court concerned with the following conditions which are being imposed in the interest of justice:-

(i) The applicant will not tamper with the evidence during the trial.

(ii) The applicant will not pressurize/ intimidate the prosecution witness.

(iii) The applicant shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer or tamper with the evidence.

(iv) The applicant shall file an undertaking to the effect that he shall not seek any adjournment on the dates fixed for evidence when the witnesses are present in court. In case of default of this condition, it shall be open for the trial court to treat it as abuse of liberty of bail and pass orders in accordance with law.

(v) The applicant shall remain present before the trial court on each date fixed, either personally or through his counsel. In case of his absence, without sufficient cause, the trial court may proceed against him under Section 229-A of the Indian Penal Code.

(vi) In case, the applicant misuses the liberty of bail during trial and in order to secure his presence proclamation under Section 82 Cr.P.C. is issued and the applicant fails to appear before the court on the date fixed in such proclamation, then, the trial court shall initiate proceedings against him, in accordance with law, under Section 174-A of the Indian Penal Code.

Order Date :- 16.11.2019

Shubhankar